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General Comment

To whom it may concern,

I am a software engineer who has proficiency in ML algorithms, the type of which are scaled and refined into products such as ChatGPT. I am in a better position than most to argue that this technology cannot meet the utopic promises of its investors, and that carving an exception in copyright law for AI firms, as a likely reading of "unnecessarily burdensome requirements," would do nothing for this country and everything for gutting the cultural output of our entertainment sector and individual artists alike.

We characterize statistical models such as generative software via measures such as specificity and sensitivity, or a measure of whether the model's output assigns unnecessary importance to irrelevant detail or misses important detail, respectively. Modern generative algorithms score well on the latter, but struggle in the former. Measurements around 0.75-0.8, taken as a proportion of 1, are common. In other words: prompt a model to comment on 5 benign scenarios, and it will likely see a warning in 1 where no such concern exists. Furthermore, generative AI suffers from a "black box" problem, where there is no effective way to reverse-engineer a model's outcome into human-intelligible reasoning, yet such models are trusted specifically because they are designed to produce a persuasive, confident result. "Truthiness, not truth," I've heard said. To trust AI is to give in to staggering statistical error, yet to trust AI, its carefully engineered prose and sci-fi promise of godly intellect lowering our defenses against lies, is human. This is not a technology we should stake our energy grid, defense industries, or any other aspect of American government on.

Yet AI exists and is coddled and fed, due to the incredible marketing of a small number of big tech firms sitting on a half-functional product, pulling tricks as devious as outsourcing Indian and Moroccan labor in real-time to regulate model output away from its irrational and potentially dangerous extremes. Research Amazon's "Just Walk Out." Some of them are likely bribing this administration and the architects of this regulation, hungry for an excuse to plunder the intellectual fruits of every American around them, all for what every model suggests will be a marginal improvement. The Chinese DeepSeek model has accomplished a similar result without nearly as much scraping of the Internet's cultural output as companies like OpenAI claim to depend on. And what of our movie scripts, our novels and art, our research and internal documents even? Gristle for the pigsty, replaceable and commoditized.

Ultimately, they don't believe in the human spirit, much less the American spirit. They don't need a free people, their love and duty and expression, only a balance sheet in the black - did I mention their investment capital isn't sustainable? I implore my elected representatives to protect our people from a nonfunctional model and its greedy investors.

Thank you,
Brian Delaney

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